SAMSON ZUKWA DANDIRA
versus
ZIMBABWE POSTS (PRIVATE) LIMITED
(t/a ZIMPOST)
and
THE LABOUR COURT JUDGE HONOURABLE MURASI J. NO

HIGH COURT OF ZIMBABWE
MUNANGATI- MANONGWA J
HARARE, May 2025, 11 February 2026

Opposed Matter

Applicant in person
T. T Magwaliba, for the first respondent

MUNANGATI- MANONGWA J: The applicant approached this court seeking review of the second respondent's decision sitting at the Labour Court under case number LCH 425/24. The application is brought in terms of rule 62 of the High Court Rules, 2021. This court refused to entertain the application and withheld its jurisdiction until the applicant complied with an extant Labour Court order which required him to pay respondent's costs before instituting any proceedings that affects first respondent. The applicant has now requested for reasons for such a ruling and hereunder are the reasons.

FACTUAL BACKGROUND

The second respondent made a ruling under case number LCH25/24 whereby applicant's application was struck off the roll and applicant was ordered to meet respondent's costs. Again, under case number LCH 425/24 the second respondent issued an order dismissing the applicant's application for reinstatement LCH25/24, in the process directing applicant to meet respondent's costs on a legal- practitioner client scale and directing that applicant should not institute any proceedings against respondent on the same matter without paying costs as directed by the order. It should be noted however that the applicant has continued to issue proceedings in this court.

APPLICANT'S CASE

It is the applicant's case that the second respondent improperly struck off the application under case number LCH 25/24 for the adjudication process. This decision was based on the assertion that the applicant failed to motivate his application alleging that the record of proceedings was incomplete as it excluded the supplementary affidavit and the supplementary heads of argument.

Furthermore, the applicant contends that the second respondent unlawfully dismissed the application for reinstatement under case number LCH 425/24, asserting that this dismissal occurred despite the record being incomplete. Specifically, the record did not include the application for leave of the court or the application for the joinder of parties and actions that had yet to be heard and determined.

The applicant further asserts that he was deprived of the right to have his application for reinstatement heard and determined on its merits. Thus, the applicant sought the review of the judgment by the second respondent.

RESPONDENT'S CASE

The respondent in its Notice of Opposition identifies two points *in limine.* First, the respondent asserts that there was non-compliance with the judgment of the Labour Court, LCH 425/24 by the applicant. Specifically, the respondent indicates that the application is defective because the applicant did not adhere to the Labour Court's order, which explicitly prohibited him from instituting any proceedings against the respondent without first paying the respondent's costs.

Second, the respondent contends that the application is, in essence, an appeal disguised as a review. The Labour Court dismissed the applicant's application on its merits, concluding that the dispute between the parties is now *res judicata*, as it was resolved by the Supreme Court.

It is the respondent's case that the applicant's application for review is without merit. The respondent therefore further asserts that the applicant has not advanced any proper grounds for review that would warrant the attention of this court. The respondent maintains that the Labour Court correctly determined that the applicant failed to provide a reasonable explanation for why his matter was struck off the roll and why it should be reinstated. At the hearing the respondent applied for upliftment of bar for the late filling of the heads of argument. The applicant opposed

the application insisting that on several occasions the respondent's representatives have failed to adhere to court rules and have always sought the court's indulgence.

ISSUE FOR DETERMINATION

The court had to decide whether it could grant audience to the applicant given his failure to pay costs before instituting another action against respondent. Equally the court had to pronounce on the application for the upliftment of bar by the respondent.

ANALYSIS

The *court a quo's* relevant part of the order reads:

> 1. "The application for reinstatement of Case Number LCH25/24, being devoid of merit, is hereby dismissed.
> 2. Applicant is to meet Respondent's costs on a legal practitioner client scale.
> 3. Applicant shall not institute any proceedings against the Respondent on the same matter without complying with paragraph 2 above."

It is imperative to recognize the binding nature of court orders and the legal obligation for compliance by all parties involved. Court orders possess inherent authority, and failure to adhere to such directives constitutes contempt of court. Specifically, contempt arises when an individual willfully and *mala fide* refuses to obey a standing order issued by the court. This principle underscores the judiciary's role in upholding the rule of law and ensuring that its directives are respected and followed.

In the present instance, it is crucial to emphasize that the order in question which required applicant to pay respondent's costs had been duly served on the applicant in case number LCHC 425/24, thus the applicant was fully aware of the obligations imposed upon him. Despite this awareness, the applicant chose to deliberately and consciously disregard the court's order and proceeded to institute these proceedings. The case of *Wilson* v *Minister of Defence & Ors* [1999] (1) ZLR 144 (HC) exemplifies this point, as it establishes the legal precedent that an individual who knowingly contravenes a court order is in contempt. An extant court order is not set aside by simply defying it. See *Madzimbamuto* v *Musamadiya* HH235/24.The applicant contends that the second respondent's judgment is incorrect and hence the justification for noncompliance with the order. Lord RADDIFFE in *Smith* v *East Elloe Rural District Council* [1956] AC 736 at 769 highlighted that:

> "An order, even if not made in good faith, is still an act capable of legal consequences. It bears no brand of illegality on its forehead. Unless the necessary procedures are taken at law to establish

> the cause of invalidity and to get it quashed or otherwise upset, it will remain as effective for its ostensible purpose as the most impeccable of orders."

By proceeding to approach this court whilst ignoring an obligation imposed by a competent court, the applicant showed disdain and disrespect to authority. These courts will not entertain litigants who chose not to obey orders and still seek the court's services. The applicant is thus approaching the court with dirty hands. Until the applicant purges his defiance, he will not be granted audience.

As for the application for upliftment of bar the court found that there was negligence on the part of the respondents and a pattern of neglecting to adhere to the rules of court was developing on the respondent's part as exemplified by requests from conciliation to arbitration, to the Labour Court up to the Supreme Court where, in nearly all the instances the respondent would apply for upliftment of bar. It is not in the interests of justice for the courts to continue to condone such failures more particularly where the 1st respondent is represented. In that regard the application for upliftment of bar is dismissed. In essence therefore should the applicant purge its failure to observe the concerned court order, the matter will get decided without first respondent's participation due to the operation of the bar.

Therefore, this court issued the following order:

1. The 1st respondent's application for the upliftment of bar is dismissed.
2. The court withholds its jurisdiction until the applicant complies with the order for payment of first respondent's costs.
3. There shall be no order as to costs.

MUNANGATI- MANONGWA J…….....

Applicant in person
Dube, Manikai and Hwacha, first respondent's legal practitioners